

HOUSE No. 1040

The Commonwealth of Massachusetts

PRESENTED BY:

Jeffrey N. Roy, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ban the use of tire-derived materials in playgrounds and playing fields in Massachusetts.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tracy Stewart</i>	<i>21 Lovering Street, Medway, MA 02053</i>	<i>1/16/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>3/19/2025</i>
<i>Carmin Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>3/25/2025</i>

HOUSE No. 1040

By Representative Roy of Franklin (by request), a petition (accompanied by bill, House, No. 1040) of Tracy Stewart for legislation to further regulate the use of tire-derived materials in playgrounds and playing fields. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ban the use of tire-derived materials in playgrounds and playing fields in Massachusetts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Whereas, the use of tire-derived materials, including but not limited to tire crumb rubber,
2 ground tire rubber, shredded tires, rubberized asphalt, pour-in-place surfacing, recycled tire chips
3 and tire-derived aggregates in playgrounds, playing fields, and landscaping has raised concerns
4 about potential health and environmental hazards;

5 Therefore, be it enacted by the Senate and House of Representatives of the
6 Commonwealth of Massachusetts in General Court assembled, and by the authority of the same,
7 as follows:

8 Section 1. For the purposes of this act "Tire-derived materials" shall mean any material
9 derived from the processing of discarded tires, including but not limited to: tire crumb rubber,
10 ground tire rubber, shredded tires, rubberized asphalt, recycled tire chips, and tire-derived
11 aggregates.

"Playground" shall mean any area designed for children's play, including but not limited to: Playgrounds in schools, parks, and residential areas; playgrounds in childcare facilities and early childhood education centers;

"Playing field" shall mean any area used for athletic activities, including but not limited to: sports fields for baseball, soccer, football, and other sports.

Section 2. No person shall install, construct, or maintain any playground or playing field surface that contains tire-derived materials. This prohibition shall apply to both new and existing playgrounds and playing fields.

Section 3. This act shall not apply to existing playground or playing field surfaces that were installed prior to the effective date of this act.

Section 4. The Department of Environmental Protection shall be responsible for enforcing the provisions of this act. The Department of Public Health] shall provide guidance and recommendations regarding safe surfacing materials for playgrounds and playing fields.

Section 5. If any provision of this act or its application to any person or circumstance is held to be invalid, such invalidity shall not affect other provisions or applications 1 of this act which can be given effect without the invalid provision or application.